

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 6, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 5	20CV367132	Maggie Liu vs David Wong et al	Motion for Fees OFF CALENDAR
LINE 6	22CV406777	Abhinav Bezgam et al vs 18771 Homestead Road, LLC et al	Motion: Stay Ctrl Click (or scroll down) on Line 6 for tentative ruling.

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Calendar Line 1

Case Name: *Taneesh Reddy v. George Michael Sasko IV, et al.*

Case No.: 24CV453480

Before the Court is Defendants Mountain View Whisman School District (the “District”) and Dalton Ernesto Mendoza Oliva’s (“Oliva”) (collectively, “Defendants”) demurrer to the complaint (“Complaint”) filed by Plaintiff Taneesh Reddy (“Plaintiff”). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. Background

This is an action for negligence. According to the allegations of the operative Complaint (“Complaint”), on December 19, 2023, Plaintiff was a passenger in a 2003 Infiniti G35 (the “Infiniti”) driven by Defendant George Michael Sasko IV and owned/leased by Defendants George Michael Sasko IV, George Michael Sasko III and Khatoun Nourallahi. (Complaint, ¶¶ 3-4.) The Infiniti was heading northbound on Miramonte Avenue in Mountain View when it struck a 2001 Ford E-150 (the “Ford”) being driven by Oliva, who was allegedly acting in the course and scope of their employment with the District at that time. (*Id.*, ¶ 5.) Oliva’s vehicle is alleged to have been owned by the District. (*Id.*) Plaintiff alleges that Mr. Sasko IV, the District and Oliva “negligently and carelessly drove, operated, maintained, owned, entrusted, serviced and controlled their respective vehicles” so as to cause the Infiniti to strike the Ford, causing Plaintiff to sustain injuries. (*Id.*, ¶ 6.)

Based on the foregoing, Plaintiff initiated this action on December 6, 2024 with the filing of the Complaint, asserting the following causes of action: (1) negligence (against all defendants); and (2) negligent entrustment of vehicle (against George Michael Sasko III and Khatoun Nourallahi).

On March 14, 2025, Defendant filed the instant demurrer to the Complaint on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff filed his opposition on May 23, 2025. May 30, 2025, Defendants filed their reply.

II. Defendants’ Demurrer

A. Legal Standard

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure s]ection 430.30, to the pleading on any one or more of the following grounds: ... (a) the court has no jurisdiction of the subject of the cause of action alleged in the pleading, (e) The pleading does not state facts sufficient to constitute cause of action, (f) The pleading is uncertain.” (Code Civ. Proc., § 430.10, subds. (a), (e) (f).) demurrer may be utilized by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

The court treats demurrer “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency*

Management Agency (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiffs ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 14 91, 94.)

B. Discussion

In demurring to the Complaint, Defendants maintain that no claim for negligence has been stated against them because (1) the Complaint lacks a statutory basis for the waiver of the District’s sovereign immunity and (2) the Complaint lacks a factual basis for a negligence claim against the District. Both of these arguments are well taken.

First, the limits of common law liability for public entities are set by the Government Claims Act (Gov. Code, § 810 et seq.), which provides, in pertinent part, that:

Except as otherwise provided by statute: [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

It is well-settled that the foregoing abolishes common law tort liability for public entities. (See *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899 (*Miklosy*)). Thus, all government tort liability is dependent on the existence of an authorizing statute or “enactment,” and “to state a cause of action [in such a circumstances] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, internal citations omitted.) “Duty cannot be alleged simply by stating ‘defendant had a duty under the law’; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged.” (*Id.*, internal citations omitted.) Because the duty of a public entity can only be created by statute or “enactment,” the statute or “enactment” claimed to establish the duty “must at the very least be identified.” (*Id.*)

Here, no statutory basis for liability is stated against Defendants in the Complaint and, as set forth above, a common law claim of negligence cannot be pleaded against a public entity. (See *Miklosy, supra*, 44 Cal.4th at 899.) Consequently, no claim for negligence, nor any other claim, has been stated against Defendants.

Turning to Defendants’ second argument, as Defendants explain, a complaint must set forth the essential facts with sufficient particularity to acquaint a defendant with the nature, source and extent of the plaintiff’s cause of action. (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 610-611.) Pleading mere legal conclusions is insufficient to meet the pleading requirement that a complaint contain a statement of facts constituting the cause of action in ordinary and concise language. (See *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) In the Complaint, Plaintiff pleads a legal conclusion when he alleges that Oliva acted negligently while operating the Ford. There are otherwise no *facts*

setting forth *how* Defendants breached the duty of care they owed to Plaintiff. For this additional reason, the Court finds that Plaintiff has failed to state a claim for negligence against Defendants.

In accordance with the foregoing, Defendants' demurrer to the Complaint on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITH 10 DAYS' LEAVE TO AMEND.

The Court will prepare the final order.

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Calendar Line 4

Case Name: *Richard Vergason v. Global Loss Prevention, Inc. et al*
Case No.: 24CV452679

Defendants move to compel Plaintiff to arbitrate “individual claims” in his Complaint pursuant to an Arbitration Agreement (“the Agreement”) that provides that “any and all claims arising out of or related to” Plaintiff’s employment will be subject to arbitration, and that any dispute will be brought “on an individual basis only and not as part of a representative action pursuant to [PAGA].” Despite the language of the Agreement, Plaintiff has brought what he calls “a purely representative PAGA action” and argues that the claims in this “Representative Action” cannot be compelled to arbitration.

It is necessary to begin with what the instant motion is not. Despite both parties’ discussion of the topic, this is not a motion to determine Plaintiff’s standing as an “aggrieved employee” to bring representative PAGA claims. Nor is it a challenge to Plaintiff’s Complaint on the basis that a *solely* representative PAGA action is unauthorized by the PAGA statute. Lastly, this is not a proceeding to determine whether Plaintiff’s filing of a representative PAGA claim violates the terms of the Agreement due to a valid PAGA waiver. Instead, Defendants bring a motion to compel “arbitration of [Plaintiff’s] individual PAGA claim.”

Two cases have reached competing views as to whether any “individual PAGA claim” in a complaint purporting to raise solely representative PAGA claims may be compelled to arbitration: *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001 review granted April 16, 2025 (S289305), and *Rodriguez v. Packers Sanitation Services LTD., LLC* (2025) 109 Cal.App.5th 69 review granted May 14, 2025 (S290182). This Court finds *Rodriguez* to be more persuasive and chooses to embrace the reasoning in that case.

As stated in *Rodriguez*:

“A motion to compel arbitration “is simply a suit in equity seeking specific performance of a contract.” (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 890.) On a motion to compel arbitration, the court is required to determine whether the plaintiff has asserted claims that fall within the parties’ arbitration agreement. (*Aanderud*, at p. 890; *EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1321; *Buckhorn v. St. Jude Heritage Medical Group* (2004) 121 Cal.App.4th 1401, 1406.) And “no dispute may be ordered to arbitration unless it is within the scope of the arbitration agreement.” (*Titolo v. Cano* (2007) 157 Cal.App.4th 310, 317.) If the plaintiff’s complaint asserts no individual PAGA claim, there is no existing dispute over his or her right to obtain an individual PAGA remedy, and he or she cannot properly be ordered to arbitrate such a claim. Therefore, if on a motion to compel arbitration the court examines the complaint and determines it does not allege an individual PAGA claim, the court should decline to compel any such claim to arbitration.”

(*Rodriguez, supra*, 109 Cal.App.5th at p. 80.) Here, Plaintiff’s Complaint asserts no individual claims and, in fact, explicitly disavows any suggestion of such. Therefore, there is no individual PAGA claim in the current Complaint for this Court to compel to arbitration.

This Court acknowledges that following *Leeper, supra*, would result in a different conclusion. The Court of Appeal in *Rodriguez* provided a thorough discussion of its disagreement with the holding in *Leeper*. (*Rodriguez, supra*, 109 Cal.App.5th at pp. 78-81.) This Court need not repeat that full discussion here. In sum:

“In essence, *Leeper* decided that (1) under Labor Code section 2699, subdivision (a), an individual PAGA claim is a necessary component of a PAGA action; *therefore*, (2) all PAGA actions, including the complaint under consideration, included an individual PAGA claim. But the second conclusion does not follow from the first. In other words, even if we were to agree with *Leeper's* interpretation of Labor Code section 2699, subdivision (a)—a question we reserve for another day—just because a PAGA action *must* include an individual PAGA claim does not mean any particular complaint brought under the auspices of PAGA *does* contain one. It means that a PAGA complaint *should* contain an individual PAGA claim, not that it *does*. Plaintiffs commonly file complaints that do not conform to statutory requirements. For that reason, specific procedural provisions exist to deal with that scenario. (See, e.g., Code Civ. Proc., § 436, subd. (b) [authorizing trial court to “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state”].)”

(*Rodriguez, supra*, 109 Cal.App.5th at p. 79.)

Defendants’ argument regarding the specific language in the Agreement is to no avail. Defendants argue that the Agreement requires a determination of an individual’s claims in arbitration to determine PAGA standing. (See Reply, at pp. 4-5.) But this argument puts at least two carts before the horse. The Agreement first requires a “civil court” to determine that Plaintiff’s “PAGA Waiver” is not enforceable, a question not currently before this Court. Next, any determination of Plaintiff’s PAGA standing in arbitration pursuant to the Agreement is dependent upon 1) the existence of an individual PAGA action that is subject to arbitration, and 2) an unspecified process for concluding that determining status as an aggrieved employee in arbitration is “permissible by law.” The first condition, as discussed above, does not exist here, and the second condition is not before the Court.

“[P]laintiff’s failure to assert an individual PAGA claim may mean the complaint fails to comply with section 2699, subdivision (a). This is a potential pleading deficiency the defendant may raise in an appropriate pleading challenge.” (*Rodriguez, supra*, 109 Cal.App.5th at p. 80.) Likewise, Defendants here may choose to challenge the Complaint in civil court for Plaintiff’s alleged defiance of the Agreement by failing to assert an individual claim and by asserting representative claims despite the “PAGA Action Waiver.” However, these are issues for another day.

Defendants’ Motion to Compel Arbitration and request to stay proceedings is DENIED.

The Court will prepare the final order.

Calendar Line 6

Case Name: *Abhinav Bezgam et al vs 18771 Homestead Road, LLC et al*

Case Number: 22CV406777

Defendant Tashjian brings a renewed motion to stay these civil proceedings.

Plaintiffs' evidentiary objections are sustained. The Court finds Plaintiffs' requests for judicial notice unnecessary to the resolution of this renewed motion.

To bring a renewed motion after a motion has been denied in California, a party must comply with the requirements of Cal Code Civ Proc 1008. Specifically, the party must demonstrate "new or different facts, circumstances, or law" that justify the renewed motion. "Tashjian files this Renewed Motion based on the Criminal Incident Report, which was not considered by this court in the Initial Motion." (Motion, p. 6.) This report is the only "new fact" upon which Tashjian brings this renewed motion.

Tashjian does not provide the Court with a copy of the "Criminal Incident Report" and relies solely upon counsel's representations regarding a "synopsis" contained within that document. (Nichani Decl., ¶ 6.) In addition to this being incompetent evidence, "case law interpreting section 1008 has specifically held that a moving party must give a satisfactory explanation for the previous failure to present the allegedly new or different evidence or legal authority offered in the second application." (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 383, citing *Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1194-1201; *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 688-691.) Tashjian offers no explanation why he did not or could not have offered this report in his initial motion. "Courts have construed section 1008 to require a party filing an application for reconsideration or a renewed application to show diligence with a satisfactory explanation for not having presented the new or different information earlier." (*Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, 486, quoting *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839.)

The Renewed Motion is DENIED.

Plaintiffs to prepare the final order within 10 days of the date of the hearing.

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